

Court No. - 32

Case :- WRIT - C No. - 12271 of 2020

Petitioner :- Bhupendra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition has been filed, inter alia, for the following reliefs:

(a) Issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 24.01.2020 issued by the respondent no.2 and impugned recovery citation dated 07.02.2020 issued by respondent no.4 for a sum of Rs.2,81,156/- + interest + collection charges to the petitioner.

(b) Issue a writ, order or direction in the nature of mandamus directing the respondent to take any coercive action against the petitioner in pursuance of recovery citation dated 07.02.2020 issued by respondent no.4 against the petitioner.

Learned counsel for the petitioner has submitted that till date even a copy of the provisional assessment has not been supplied to the petitioner by the the concerned authority and coercive action is being taken against the petitioner without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005.

Learned counsel for the electricity department undertakes to supply a copy of the provisional assessment to the petitioner forthwith.

Heard learned counsel for the petitioner, Miss. Usha Kiran, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 05.10.2020 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner

as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands **disposed of.**

Order Date :- 1.9.2020

P.S.Parihar